

9:30 AM

LINE: 4

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANTS PENINSULA CORRIDOR JOINT POWERS BOARD, TRANSITAMERICA SERVICES, INC. and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY NON-PARTY STACY WITBECK, INC.

TENTATIVE RULING:

Defendant Peninsula Corridor Joint Powers Board’s unopposed motion for an order compelling non-party Stacy Witbeck Inc. (“SWI”), to produce responsive documents pursuant to deposition subpoena for production of records in response to Nos. 1 through 13 is **GRANTED**.

Defendant is reminded that exhibits **MUST** be properly bookmarked: it is not the Court’s onus to parse through a declaration over one hundred fifty pages in length to find exhibits cited therein. “[E]lectronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 [“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”].)

BACKGROUND

This is an injury accident and negligence action brought by Plaintiff William Rogers and his wife Sarah Rogers against Defendants PCJPB, Transitamerica Services Inc. (“TASI”), and Herzog Transit Services, Inc. after Plaintiff William Rogers, an employee of Modern Railway Systems (“MRS”), was injured on Caltrain property.

Caltrain had contracted with Balfour Beatty Infrastructure (“BBI”) to modernize the Caltrain passenger rail service by converting from diesel powered locomotives to electrical power. As part of the Caltrain Electrification Project (hereinafter referred to as the “Project”), BBI subcontracted with MRS to perform signalization work. MRS is a subsidiary of SWI and SWI also provided services along with MRS as part of the Project.

The injury-accident occurred on August 25, 2022, when Plaintiff William Rogers was working on Caltrain’s property and fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below. The underlying lawsuit followed on July 20, 2023, and is set for trial on November 20, 2026. A cross-complaint was also filed.

The instant motion seeks to compel non-party SWI to produce responsive documents pursuant to the second deposition subpoena served on October 21, 2025, for production of records served on in response to Nos. 1 through 13 pursuant to Code of Civil Procedure sections 1987.1, 2025.280, 2025.480, 2025.450. (Declaration

of Pearl M. Walker iso Motion to Compel Compliance with Subpoena, filed January 5, 2026, ¶ 8, Ex. 5.) SWI served its objections to the second subpoena on November 5, 2025. (Walker Decl. ¶ 9 Ex. 6.) This motion was filed on Monday, January 5, 2026.

On July 9, 2026, defendant filed a notice of non-opposition to the instant motion.

On July 13, 2026, SWI filed a motion for relief pursuant to Code of Civil Procedure section 473 requesting that the Court allow Stacy Witbeck to argue its points in that opposition at the instant hearing date, July 16, 2026, because the opposition brief was not filed due to counsel's calendaring mistake. This motion is not properly before the Court and the Court declines to rule on the merits of the motion to vacate.

LEGAL STANDARD

"[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery." (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superseded by statute].) " 'The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]' [Citation.]" (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)" (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

(Code Civ. Proc., § 2017.010.)

In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).) To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena. (*Id.*, § 2020.010, subd. (b).) "A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item, and shall specify the form in which any electronically stored information is to be produced, if a particular form is desired." (*Id.*, § 2020.410, subd. (a).)

(*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1030.)

"[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities. (*Calcor*, at p. 224, 61 Cal.Rptr.2d 567.) In assessing the party's proffered justification, courts must keep in mind the more limited scope of discovery available from

nonparties. (See *Catholic Mutual Relief Society v. Superior Court* (2007) 42 Cal.4th 358, 366, fn. 6, 64 Cal.Rptr.3d 434, 165 P.3d 154.” (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039 (*Board*)).)

DISCUSSION

Initially, the Court notes the instant motion is timely because the statutory 60th day fell on Sunday, January 4, 2026. Therefore, the instant motion’s filing date of January 5, 2026 was timely. (Code Civ. Proc. § 2025.480, subd. (b); *Board, supra*, 59 Cal.App.5th at 1031.)

Defendant PCJPB’ brings this motion on the basis that SWI has information that may be probative of issues of liability, comparative fault, as well as the facts and circumstances that lead to Plaintiff William Rogers’ injuries because this discovery is relevant to the subject matter involved in the pending action. Specifically, the request seeks all documents evidencing, reflecting or referring to safety conditions, inspection findings, maintenance assessments, or any actual and/or potential safety hazards relating to Oregon Expressway Bridge during the period of August 1, 2022, to August 31, 2022. Defendant contends their original request has been substantially narrowed, limiting timeframe and the scope of the information sought. Even though an opposition was not timely presented, the Court addresses the merits of the request below as set forth in Defendant’s separate statement of responses filed in support of this motion.

REQUEST NO. 1: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to the performance of any work, maintenance, or repair activities by Stacy Witbeck Inc., at or about BRIDGE, during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 1: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants’ prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 2: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to safety conditions, inspection findings, maintenance assessments, or any actual and/or potential safety hazards relating to BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 2: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants’ prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 3: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to the existence, report, discovery, or repair of any open hole or hazardous opening on the BRIDGE from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 3: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 4: All photographs, reports, or communications from August 1,2022 to August 31,2022 relating to any open hole on the BRIDGE, including those showing knowledge of the hole, safety measures taken, or changes to signage, markings, or warnings.

RESPONSE TO TOPIC NO. 4: SW objects to this request as improper, harassing, overly broad and impermissible under California law, and as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS. SW further objects to the phrases "knowledge of the hole," "safety measures taken," and "changes to signage, markings, or warnings" on the basis that they are all vague, ambiguous, and unintelligible, including but not limited to because it is unclear what the subject of the phrases is (i.e., whose or what's knowledge, who or what took the safety measures, who or what made the changes at issue in the request). The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 5: Any correspondence, including emails, letters, text messages, or other written communications, between employees, contractors, or third parties regarding any work performed in or around the BRIDGE from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 5: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 6: Any safety inspection reports, audits or evaluations conducted in relation to the BRIDGE, particularly any references to hazardous conditions, safety violations, or corrective actions taken from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 6: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably

cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 7: All records, including incident reports and complaints, that document any injuries, close calls, or safety issues related to the BRIDGE between August 1, 2022, and August 31, 2022.

RESPONSE TO TOPIC NO. 7: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 8: Any photographs or videos depicting work performed on or near the BRIDGE from August 1, 2022, through August 31, 2022, including but not limited to images documenting project progress, inspections, or safety measures in effect during that period.

RESPONSE TO TOPIC NO. 8: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The request is reasonably tailored and seeks photographs and videos relevant to the issues in dispute. The subpoena is appropriately limited to materials in SWI's possession depicting work performed by SWI at or near the Bridge during the relevant time period.

REQUEST NO. 9: Any maps, plans, diagrams, blueprints, engineering drawings or other technical DOCUMENTS evidencing, depicting, or referring to any work completed or planned by Stacy Witbeck, Inc. at or about the BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 9: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 10: Any DOCUMENTS, including meeting minutes, notes, agendas, or summaries referring to or reflecting any safety meetings and/or project-related discussions in which Stacy Witbeck discussed the BRIDGE between August 1, 2022, and August 31, 2022.

RESPONSE TO TOPIC NO. 10: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 11: Any DOCUMENTS, communications and records in any form evidencing, reflecting, or referring to any complaints, reports, or notices made by Stacy Witbeck's employees, or third parties regarding actual or potential unsafe conditions at or near the BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 11: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 12: All DOCUMENTS, including but not limited to maintenance logs, repair records, work orders, inspection reports, and internal communications, concerning any maintenance or repair activity related to the BRIDGE from August 1, 2022 through August 31, 2022, specifically including any references to the existence of an open hole, any work performed to address or remedy such condition, and any removal, modification, or placement of warnings, signage, or safety markings related thereto.

RESPONSE TO TOPIC NO. 12: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 13: All DOCUMENTS including but not limited to work orders, maintenance and repair records, inspection reports, photographs, videos, correspondence, and internal communications, relating to any work performed on or involving the signal equipment known as an AFTAC box and/or any associated junction box located on the north side of the BRIDGE near the Caltrain California Avenue Station, regardless of whether such work was planned, in progress, or completed.

RESPONSE TO TOPIC NO. 13: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably

cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence. **RULING: GRANTED.** The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED.**

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 5

23-CIV-02445

GLORIA DEL ROSARIO AUSTRIA VS. KYU LEE, ET AL

GLORIA DEL ROSARIO AUSTRIA
KYU LEE

SHARONA ESLAMBOLY HAKIM
WILLIAM H. COKE

DEFENDANT, CROSS DEFENDANT AND CROSS COMPLAINANT KYU LEE'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Plaintiff Gloria Del Rosario Austria alleges that she was injured after tripping and falling on the sidewalk in front of Defendant Kyu Lee's house. Plaintiff has sued Defendant Lee for Negligence and Premises Liability. Defendant Lee has moved for summary judgment or, alternatively, summary adjudication, as to both claims.

Defendant's motion for summary judgment is **GRANTED**.

Plaintiff's objections #1-10 are **OVERRULED**.

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Id., at subd. (c).)

"A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit" (Code of Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit if one or more of its elements cannot be separately established or an affirmative defense can be established. (Id., subd. (o).)

A defendant moving for summary judgment or summary adjudication has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code of Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (Ibid.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

The moving party's ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar*, 25 Cal.4th at 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and